

Prospective Quoters

Subject: Request for Quotations number 19EC-75-26-Q-0001

Enclosed is a Request for Quotations (RFQ) for qualified automotive service provider to perform preventive and corrective maintenance on the U.S. Embassy's Government-Owned Vehicles (GOVs), ensuring they remain safe, reliable, and mission-ready.

The Embassy of the United States in Quito will establish Blanket Purchase Agreements (BPAs) for qualified automotive service providers to perform preventive and corrective maintenance on the U.S. Embassy's Government-Owned Vehicles (GOVs), ensuring they remain safe, reliable, and mission-ready.

The U.S. Government intends to award a Blanket Purchase Agreement (BPA) to one or more responsible companies submitting an acceptable quotation with fair and reasonable prices. We intend to award a BPA based on initial quotations, without holding discussions, although we may hold discussions with companies if there is a need to do so.

A BPA is an Agreement, not a contract, and neither party is bound by its terms and conditions. The Government is not obligated to purchase any definite amount under this BPA. If a need arises, an authorized representative of the Government may issue an order following the procedures outlined in the BPA. If the BPA-holder accepts the order, then a binding contract between the Government and BPA-holder will exist for that specific order. If the BPA-holder refuses to accept orders or furnish quotations in compliance with the terms of the Agreement, then it is likely that the Government will cancel the Agreement.

Purpose and Scope

The BPA intends to standardize maintenance services for a mixed fleet of Chevrolet, Dodge, Ford, Nissan, Renault, and other GOVs. It covers both preventive, mileage-based maintenance and corrective repairs for light-, medium-, and heavy-duty vehicles, with all work performed at the contractor's licensed facility upon approval of quotations by the Procurement Section.

Preventive Maintenance Program

Preventive maintenance is structured around a detailed mileage-based schedule from 5,000 km up to 100,000 km. At lower mileage intervals, services focus on oil and filter changes, inspections (brakes, tires, belts, hoses, fluids, battery, underbody), and basic diagnostics. As mileage increases, additional tasks are added, including tire rotation and balancing, brake cleaning and fluid replacement, steering and suspension checks, cooling system tests and flushes, transmission and differential fluid services, fuel system cleaning, spark plug and fuel filter work, and timing belt inspections or replacement where required. Major services are defined at key intervals (e.g., 40,000 km, 50,000 km, 60,000 km, 80,000 km, 90,000 km, and 100,000 km) and include comprehensive diagnostics, safety inspections, and final reports.

Corrective Maintenance

Beyond scheduled maintenance, the contractor will provide corrective repairs as needed for major vehicle systems. This includes engine, transmission, brake, electrical, suspension, air conditioning, cooling, and exhaust system repairs, all performed only after submission and approval of written estimates.

Parts, Standards, and Quality Assurance

The contractor must use new OEM or equivalent-quality parts unless otherwise authorized, and work must be done by certified technicians in line with manufacturer recommendations and industry best practices. The Embassy retains the right to inspect completed work and require rework for any unsatisfactory services, ensuring consistent quality and compliance with the SOW.

Administration, Reporting, and Warranty

All services require prior authorization via approved quotations and purchase orders issued by the Procurement Section. The contractor must provide detailed service records, lists of replaced parts, and all relevant warranty documentation for each job. A minimum 90-day labor warranty is required on all work, along with the full manufacturer warranty on installed parts, providing post-service assurance and traceability for the Embassy.

If you are interested in participating in this solicitation, follow the instructions in Section 3 of the solicitation, complete the required portions of the attached document, and submit your proposal electronically to Quitoprocurement@state.gov making reference to "Quotation Enclosed – Vehicle Maintenance Services". It is important to make sure the submission is made in specific size and format; in MS-Word 2007/2010 or MS-Excel 2007/2010 or Adobe Acrobat (pdf) file format. The file size must not exceed 25MB. If the file size should exceed 25MB, the submission must be made in separate files and attached to separate emails with less than 25MB each. **before 16H00 on May 29, 2026.**

Direct any questions related to this RFQ to Quitoprocurement@state.gov

In order for a proposal to be considered, you must also complete and submit the following:

1. SF-1449
2. Section 1 Pricing
3. Section 5 Representations and Certifications
4. Additional information as required in Section 3

Sincerely,

Matthew Madden
Contracting Officer

Enclosure

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS				1. REQUISITION NUMBER PR15989931		PAGE 1 OF 1 / 42	
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 19EC-75-26-Q-0001	
7. FOR SOLICITATION INFORMATION CALL		a. NAME Matthew Madden				b. TELEPHONE NUMBER(No collect calls) 593-2-3985000	
						8. OFFER DUE DATE/ LOCAL TIME May 29, 2026	
9. ISSUED BY American Embassy Quito Avigiras E12-170 y Eloy Alfaro Quito, Ecuador				10. THIS ACQUISITION IS ☒ UNRESTRICTED ☐ SET ASIDE: % FOR ☐ SMALL BUSINESS ☐ EMERGING SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN OWNED ☐ 8(A) NAICS: SIZE STD:			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE				12. DISCOUNT TERMS			
				13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)			
				13b. RATING			
				14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP			
15. DELIVER TO: American Embassy Quito Avigiras E12-170 y Eloy Alfaro Quito, Ecuador				16. Administered by: Ramon E. Best, Contracting Officer			
17.a. CONTRACTOR/OFFEROR CODE FACILITY CODE				18a. PAYMENT WILL BE MADE BY General Services Office American Embassy Quito Avigiras E12-170 y Eloy Alfaro Quito, Ecuador			
TELEPHONE NO:							
☐ 17b CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY ESTIM	22. UNIT	23. UNIT PRICE	24. AMOUNT
	This Request for Quotation is for preventive and corrective maintenance services on the U.S. Embassy's Government-Owned Vehicles (GOVs), ensuring they remain safe, reliable, and mission-ready. The Statement of Work ,and terms and conditions are in the attachment (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Govt. Use Only)	
☒ 27a.SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED. ☒ 27b.CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED.							
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u> 1 </u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED HEREIN.					☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)				30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or Print)	
						Matthew Madden	
						31c. DATE SIGNED	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER		34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT
☐ PARTIAL ☐ FINAL				☐ COMPLETE ☐ PARTIAL ☐ FINAL
37. CHECK NUMBER				
38. S/R ACCOUNT NO.	39. S/R VOUCHER NO.	40. PAID BY		
41.a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY (PRINT)		
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		42b. RECEIVED AT (Location)		
		42c. DATE REC'D (YY/MM/DD)		42d. TOTAL CONTAINERS

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SECTION 3 - SOLICITATION PROVISIONS

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- * Addendum to Solicitation Provisions - FAR and DOSAR clauses not prescribed in Part 12

SECTION 4 - OFFEROR REPRESENTATIONS AND CERTIFICATIONS

- * Offeror Representations and Certifications
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SECTION 1 - THE SCHEDULE
BLANKET PURCHASE AGREEMENT
(BPA) No.
ESTABLISHED BETWEEN US EMBASSY – QUITO
AND
THE BPA HOLDER:
[Identify firm name and address]

SAMPLE BPA

1. BPA Number

The American Embassy Quito invites you to enter into this BPA that establishes the terms and conditions applicable to future purchases of: **Preventive and corrective maintenance on the U.S. Embassy's Government-Owned Vehicles (GOVs), ensuring they remain safe, reliable, and mission-ready.**

2. Expiration Date:

BPA expires on *May, 31, 2031*.

3. Embassy Estimate:

The Embassy estimates that the volume of purchases annually through this agreement will be from **US\$2,500.00 to US\$40,000.00**.

4. Terms and Conditions:

- The Embassy is **not** obligated to purchase any definite amount under this agreement.
 - No single purchase will exceed USD **US\$ 5,000.00** or the equivalent in local currency.
 - The total amount ordered under this agreement life will not exceed US\$350,000 or the equivalent in local currency.
- * The prices to the Government shall be as low or lower than those charged your most favored customers for comparable quantities under similar terms and conditions, in addition to any discount for prompt payment.

5. Authorized Employees

The following employees are authorized to place orders:

<u>Name</u>	<u>Job Title</u>	<u>Dollar Limitation</u>
	Motorpool	MPT
	Motorpool	MPT
	Motorpool	MPT
	DHS	MPT
	Milgroup	MPT
	Milgroup	MPT
	Procurement	MPT
	Procurement	MPT
	Procurement	MPT

No other employee may place an order against this BPA unless authorized in writing by the Contracting Officer.

6. Delivery Tickets

All shipments/deliveries shall be accompanied by a delivery ticket or sales slip including the following information:

- name of supplier;
- BPA number;
- date of purchase;
- purchase number;
- itemized list of supplies or services furnished;
- quantity, unit price, and extension of each item, less applicable discounts;
- date of delivery or shipment;
- name of the authorized employee who placed the order.

7. Invoices

The BPA holder shall submit a summary invoice at least monthly or upon expiration of this BPA, whichever occurs first, for all deliveries made during a billing period. The invoice shall identify the delivery tickets covered therein, stating the total dollar value, and supported by recent copies of the delivery tickets.

8. FAR and DOSAR Clauses

The FAR and DOSAR clauses attached to this BPA shall apply to all purchases made under this BPA. In the event of an inconsistency between the provisions of this BPA and your invoice, the provisions of the BPA shall take precedence.

9. Acceptance

You are requested to acknowledge acceptance of this BPA, including its terms, conditions, and clauses, by signing and returning a copy to Matthew Madden, United States Embassy Quito, Avigiras E12-170 and Eloy Alfaro and by email to Quitoprocurement@state.gov.

Sincerely,

Matthew Madden
Contracting Officer

BPA Accepted:

Signature	Date
(Typed/Printed Name and Title of Signer)	

Please indicate the remittance or check mailing address in the space provided below if different from the address to which this agreement was addressed.

ORDER FOR SUPPLIES OR SERVICES						PAGE	OF	PAGES
IMPORTANT: Mark all packages and papers with contract and/or order numbers.								
1. DATE OF ORDER		2. CONTRACT NO. (If any)		6. SHIP TO:				
3. ORDER NO.		4. REQUISITION/REFERENCE NO.		a. NAME OF CONSIGNEE				
5. ISSUING OFFICE: (Address correspondence to)				b. STREET ADDRESS				
				c. CITY		d. STATE		e. ZIP CODE
7. TO:				f. SHIP VIA:				
a. NAME OF CONTRACTOR				8. TYPE OF ORDER				
b. COMPANY NAME				☐ a. PURCHASE ☐ b. DELIVERY -- Except for billing instructions on the reverse, this delivery order is subject to instructions contained on this side only of this form and is issued subject to the terms and conditions of the above-numbered contract.				
c. STREET ADDRESS				REFERENCE YOUR: Please furnish the following on the terms and conditions specified on both sides of this order and on the attached sheets, if any, including delivery as indicated.				
d. CITY		e. STATE		f. ZIP CODE				
9. ACCOUNTING AND APPROPRIATION DATA				10. REQUISITIONING OFFICE				
Funds will be obligated at the time an order is placed.								
11. BUSINESS CLASSIFICATION (Check appropriate box(es))								12. F.O.B. POINT
☐ a. SMALL		☐ b. OTHER THAN SMALL		☐ c. DISADVANTAGED		☐ g. SERVICE-DISABLED VETERAN-OWNED		
☐ d. WOMEN-OWNED		☐ e. HUBZone		☐ f. EMERGING SMALL BUSINESS				
13. PLACE OF		14. GOVERNMENT B/L NO.		15. DELIVER TO F.O.B. POINT ON OR BEFORE (Date)		16. DISCOUNT TERMS		
a. INSPECTION See Block 6		b. ACCEPTANCE See Block 6		N/A		Net 30		
17. SCHEDULE (See reverse for Rejections)								
ITEM NO. (a)	SUPPLIES OR SERVICES (b)			QUANTITY ORDERED (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)	QUANTITY ACCEPTED (g)
	Blanket Purchase Agreement for Vehicle Maintenance See attached terms and conditions and FAR/DOSAR Clauses.							
SEE BILLING INSTRUCTIONS ON REVERSE	18. SHIPPING POINT		19. GROSS SHIPPING WEIGHT		20. INVOICE NO.			
	21. MAIL INVOICE TO:						17(h) TOT. (Cont. pages) Text 17(j) GRAND TOTAL	
	a. NAME							
	b. STREET ADDRESS (or P.O. Box)							
c. CITY				d. STATE	e. ZIP CODE			
22. UNITED STATES OF AMERICA BY (Signature) ▶					23. NAME (Typed)			
					TITLE: CONTRACTING/ORDERING OFFICER			
AUTHORIZED FOR LOCAL REPRODUCTION PREVIOUS EDITION NOT USABLE								
OPTIONAL FORM 347 (REV. 4/2006) Prescribed by GSA/FAR 48 CFR 53.213(f)								

ATTACHMENT 1

STATEMENT OF WORK (SOW) Blanket Purchase Agreement (BPA) – Vehicle Maintenance Services

1. Background

The U.S. Embassy requires qualified automotive service providers to perform preventive and corrective maintenance for Government-Owned Vehicles (GOVs) operated by the Motor Pool. The fleet includes, but is not limited to, Chevrolet, Dodge, Ford, Nissan, and Renault vehicles.

2. Purpose

The purpose of this BPA is to establish standardized maintenance services to ensure GOVs remain safe, reliable, and mission-ready through preventive and corrective maintenance.

3. Scope of Work

The contractor shall provide preventive maintenance, diagnostic services, and corrective repairs for light- medium- and heavy duty GOVs. All work shall be performed at the contractor's facility upon approved quotation by the Procurement Section.

4. Preventive Maintenance Program (Mileage-Based)

Maintenance shall be performed according to mileage.

4.1 – 5,000 km Service (Minor)

- Engine oil and oil filter replacement
 - Air filter inspection/replacement (if required)
 - Brake visual inspection
 - Tire pressure check
 - Belts and hoses inspection
 - Battery inspection
 - All fluid level check/top-off
 - Underbody inspection
 - Diagnostic scan (if applicable)
-

4.2 – 10,000 km Service

Includes 5,000 km services, plus:

- Tire rotation
 - Wheel nut torque check
 - Cabin filter inspection
 - Steering, suspension, and exhaust inspection
-

4.3 – 15,000 km Service

Includes 10,000 km services, plus:

- Engine air filter replacement (if needed)
 - Throttle body cleaning (if applicable)
 - Fuel system inspection
 - Lubrication of moving parts
 - Basic alignment check
-

4.4 – 20,000 km Service

Includes prior services, plus:

- Oil and filter change
 - Brake fluid condition check
 - Coolant test
 - Transmission fluid level check
 - Tire balance check
-

4.5 – 25,000 km Service

Includes prior services, plus:

- Detailed brake cleaning and inspection
 - Suspension torque check
 - Steering system inspection
 - Fuel leak inspection
 - Wheel alignment check
-

4.6 – 30,000 km Service

Includes prior services, plus:

- Fuel filter replacement (if applicable)
 - Spark plug check/replacement (gasoline engines)
 - Transmission inspection
 - Differential fluid inspection (if applicable)
-

4.7 – 35,000 km Service

Includes prior services, plus:

- Engine and cabin filter replacement
- Cooling system pressure test
- Battery load test

- Emissions system inspection

4.8 – 40,000 km Service (Major)

Includes prior services, plus:

- Brake fluid replacement
- Cooling system flush (as required)
- Drive belt inspection/replacement

4.9 – 45,000 km Service

Includes prior services, plus:

- Transmission fluid replacement (if required)
- Power steering fluid service
- Differential fluid service (if applicable)
- Full undercarriage inspection

4.10 – 50,000 km Service (Major)

Includes prior services, plus:

- Full diagnostics scan
- Road test
- Complete safety inspection
- Service report

Extended Mileage Maintenance

4.11 – 55,000 km Service

Includes:

- Engine oil and filter change
- Brake inspection
- Tire rotation
- Suspension and steering inspection
- Fluid level checks

4.12 – 60,000 km Service (Major)

Includes all 55,000 km services, plus:

- Transmission fluid replacement (per manufacturer)
- Differential fluid replacement (if applicable)
- Brake fluid replacement (if applicable)

- Fuel system cleaning

4.13 – 65,000 km Service

Includes:

- Oil and filter change
- Air and cabin filter inspection
- Belt and hose inspection
- Electrical system inspection

4.14 – 70,000 km Service

Includes:

- Tire rotation and balancing
- Brake inspection/service
- Steering and suspension inspection
- Alignment check

4.15 – 75,000 km Service

Includes:

- Oil and filter change
- Fuel filter replacement (if applicable)
- Comprehensive cooling system inspection
- Exhaust system inspection

4.16 – 80,000 km Service (Major)

Includes all 75,000 km services, plus:

- Spark plug replacement (if applicable)
- Timing belt/chain inspection (replace if required)
- Throttle body/fuel injector cleaning
- Full diagnostic scan

4.17 – 85,000 km Service

Includes:

- Oil and filter change
- Brake system cleaning
- Suspension and chassis inspection
- Battery load test

4.18 – 90,000 km Service (Major)

Includes:

- Transmission system inspection
- Drive belt replacement (if required)
- Cooling system flush (if required)
- Power steering system service

4.19 – 95,000 km Service

Includes:

- Oil and filter change
- Tire rotation
- Brake and exhaust inspection
- Steering and suspension check

4.20 – 100,000 km Service (Major)

Includes:

- Comprehensive mechanical inspection
- Timing belt replacement (if required by manufacturer)
- Transmission fluid replacement
- Differential fluid replacement (if applicable)
- Full diagnostic system scan
- Complete safety evaluation and final report

5. Corrective Maintenance Services

The contractor shall provide corrective repairs including engine, transmission, brake, electrical, suspension, air conditioning, cooling, and exhaust repairs, upon approved written estimates.

6. Parts and Materials

OEM (Original Equipment Manufacturer) or equivalent-quality parts shall be used. All parts must be new unless otherwise authorized.

7. Performance Standards

Work shall be performed by certified technicians following manufacturer recommendations and industry best practices.

8. Quality Assurance

The Embassy reserves the right to inspect work and request rework for any unsatisfactory services.

9. Place of Performance

Services shall be performed at the contractor's licensed facility unless otherwise approved.

10. Ordering and Payment

Services must be authorized after quotation and purchase order (PO) approved by the Procurement Section.

11. Reporting

The contractor shall provide service records, replaced parts lists, and warranty documentation.

12. Warranty

Minimum 90-day labor warranty and manufacturer warranty on all parts.

ATTACHMENT 2 PRICING

PROPOSED PRICE FOR SERVICES

PREVENTIVE MAINTENANCE

Reference	Service ID	Mileage Interval (km)	Service Type	Description	Included Tasks	Vehicle Class	Unit of Measure	Unit Price (USD)	Unit Price including 15% VAT
SOW 4.1	PM-5000	5,000	Minor	5,000 km preventive maintenance	Engine oil and oil filter replacement; Air filter inspection/replacement (if required); Brake visual inspection; Tire pressure check; Belts and hoses inspection; Battery inspection; All fluid level check/top-off; Underbody inspection; Diagnostic scan (if applicable)	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.2	PM-10000	10,000	Standard	10,000 km preventive maintenance	Includes all 5,000 km service tasks; Tire rotation; Wheel nut torque check; Cabin filter inspection; Steering, suspension, and exhaust inspection	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.3	PM-15000	15,000	Standard	15,000 km preventive maintenance	Includes all 10,000 km service tasks; Engine air filter replacement (if needed); Throttle body cleaning (if applicable); Fuel system inspection; Lubrication of moving parts; Basic alignment check	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.4	PM-20000	20,000	Standard	20,000 km preventive maintenance	Includes prior services; Oil and filter change; Brake fluid condition check; Coolant test; Transmission fluid level check; Tire balance check	Light/Medium/Heavy	Per vehicle service		\$ -

SOW 4.5	PM-250 00	25,000	Standard	25,000 km preventive maintenance	Includes prior services; Detailed brake cleaning and inspection; Suspension torque check; Steering system inspection; Fuel leak inspection; Wheel alignment check	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.6	PM-300 00	30,000	Standard	30,000 km preventive maintenance	Includes prior services; Fuel filter replacement (if applicable); Spark plug check/replacement (gasoline engines); Transmission inspection; Differential fluid inspection (if applicable)	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.7	PM-350 00	35,000	Standard	35,000 km preventive maintenance	Includes prior services; Engine and cabin filter replacement; Cooling system pressure test; Battery load test; Emissions system inspection	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.8	PM-400 00	40,000	Major	40,000 km preventive maintenance (Major)	Includes prior services; Brake fluid replacement; Cooling system flush (as required); Drive belt inspection/replacement	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.9	PM-450 00	45,000	Major	45,000 km preventive maintenance	Includes prior services; Transmission fluid replacement (if required); Power steering fluid service; Differential fluid service (if applicable); Full undercarriage inspection	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.10	PM-500 00	50,000	Major	50,000 km preventive maintenance (Major)	Includes prior services; Full diagnostics scan; Road test; Complete safety inspection; Service report	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.11	PM-550 00	55,000	Standard	55,000 km preventive maintenance	Engine oil and filter change; Brake inspection; Tire rotation; Suspension and steering inspection; Fluid level checks	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.12	PM-600 00	60,000	Major	60,000 km preventive maintenance (Major)	Includes all 55,000 km services; Transmission fluid replacement (per manufacturer); Differential fluid replacement (if applicable); Brake fluid replacement (if applicable); Fuel system cleaning	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.13	PM-650 00	65,000	Standard	65,000 km preventive maintenance	Oil and filter change; Air and cabin filter inspection; Belt and hose inspection; Electrical system inspection	Light/Medium/Heavy	Per vehicle service		\$ -

SOW 4.14	PM-700 00	70,000	Standard	70,000 km preventive maintenance	Tire rotation and balancing; Brake inspection/service; Steering and suspension inspection; Alignment check	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.15	PM-750 00	75,000	Standard	75,000 km preventive maintenance	Oil and filter change; Fuel filter replacement (if applicable); Comprehensive cooling system inspection; Exhaust system inspection	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.16	PM-800 00	80,000	Major	80,000 km preventive maintenance (Major)	Includes all 75,000 km services; Spark plug replacement (if applicable); Timing belt/chain inspection (replace if required); Throttle body/fuel injector cleaning; Full diagnostic scan	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.17	PM-850 00	85,000	Standard	85,000 km preventive maintenance	Oil and filter change; Brake system cleaning; Suspension and chassis inspection; Battery load test	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.18	PM-900 00	90,000	Major	90,000 km preventive maintenance (Major)	Transmission system inspection; Drive belt replacement (if required); Cooling system flush (if required); Power steering system service	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.19	PM-950 00	95,000	Standard	95,000 km preventive maintenance	Oil and filter change; Tire rotation; Brake and exhaust inspection; Steering and suspension check	Light/Medium/Heavy	Per vehicle service		\$ -
SOW 4.20	PM-100 000	100,000	Major	100,000 km preventive maintenance (Major)	Comprehensive mechanical inspection; Timing belt replacement (if required by manufacturer); Transmission fluid replacement; Differential fluid replacement (if applicable); Full diagnostic system scan; Complete safety evaluation and final report	Light/Medium/Heavy	Per vehicle service		\$ -

CORRECTIVE MAINTENANCE

Reference	Service ID	Category	Description	Labor Rate Basis	Vehicle Class	Unit of Measure	Labor Rate (USD)	Diagnostic Fee (USD)
Per SOW section 5	CM-ENG	Engine	Engine repairs (general)	Hourly labor for engine diagnostics and corrective repairs	Light/Medium/Heavy	Per labor hour		
Per SOW section 5	CM-TRN	Transmission	Transmission repairs (automatic/manual)	Hourly labor for transmission diagnostics and repair	Light/Medium/Heavy	Per labor hour		
Per SOW section 5	CM-BRK	Brake	Brake system repairs (pads, rotors, lines, hydraulics)	Hourly labor plus parts	Light/Medium/Heavy	Per labor hour		
Per SOW section 5	CM-ELC	Electrical	Electrical system diagnostics/repair	Hourly labor plus parts	Light/Medium/Heavy	Per labor hour		
Per SOW section 5	CM-SUS	Suspension	Suspension and steering repairs	Hourly labor plus parts	Light/Medium/Heavy	Per labor hour		
Per SOW section 5	CM-AC	Air Conditioning	Air conditioning system repair	Hourly labor plus parts	Light/Medium/Heavy	Per labor hour		
Per SOW section 5	CM-COOL	Cooling	Cooling system repairs	Hourly labor plus parts	Light/Medium/Heavy	Per labor hour		
Per SOW section 5	CM-EXH	Exhaust	Exhaust system repair	Hourly labor plus parts	Light/Medium/Heavy	Per labor hour		

SPARE PARTS

Refer ence	Part Category	Description	Quality Requirement		Unit of Measure	Typical Discount
Per SOW sectio n 6	Engine/Fil ters	Filters, spark plugs, engine components	OEM or equivalent-quality parts, new only		Per part	%
Per SOW sectio n 6	Brakes	Pads, rotors, drums, lines	OEM or equivalent-quality parts, new only		Per part	%
Per SOW sectio n 6	Suspensio n	Shocks, struts, arms, bushings	OEM or equivalent-quality parts, new only		Per part	%
Per SOW sectio n 6	Cooling	Radiators, pumps, hoses, thermostats	OEM or equivalent-quality parts, new only		Per part	%
Per SOW sectio n 6	Electrical	Batteries, alternators, starters, wiring	OEM or equivalent-quality parts, new only		Per part	%

SECTION 2 - CLAUSES FOR BLANKET PURCHASE AGREEMENTS
AWARDED BY OVERSEAS CONTRACTING ACTIVITIES

52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL PRODUCTS
AND COMMERCIAL SERVICES (NOV 2023) IS INCORPORATED BY
REFERENCE (SEE SF-1449, BLOCK 27B)

ADDENDUM TO 52.212-4

NONE

Paragraph (b), check as appropriate:

- (1) Check if requirement exceeds \$250,000.
- (2) Check if requirement exceeds \$6 million and the performance period is 120 days or more.
- (3) Not Applicable overseas, for use with Recovery Act Funds.
- (4) Check (except solicitations and contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community (see 3.900(a)).
- (5) Check if requirement exceeds \$30,000
- (6) Reserved
- (7-8) Only applicable to U.S. firms
- (9) Check
- (10) Federal Supply Schedules, Governmentwide acquisition contracts, and multi-agency contracts where FASCSA orders are applied at the order level
- (11) Check https://www.acquisition.gov/far/4.2306#FAR_4_2306
- (12) Check if requirement exceeds \$35,000
- (13) Check if requirement exceeds \$600,000
- (14) Reserved
- (15-30) Not applicable
- (31) Not applicable unless purchased from the Federal Prison Industries and over the micro-purchase threshold.
- (32) Applicable to all acquisitions over micro-purchase threshold
- (33-34) Check if requirement is for supplies exceeds \$10,000 and is awarded to a U.S. firm, or is for services exceeds \$10,000 and is awarded to a U.S. firm whose employees performing the work were recruited within the U.S.
- (35-36) Do not check if both the performance of the work and the recruitment of workers will occur outside the United States, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, or Wake Island. Otherwise, contact your A/GA Desk Officer for instructions.
- (37) Check if you have included clause 52.222-35
- (38) Do not check since you are contracting only for work that will be performed outside of the United States. If some of your work will be performed inside the U.S., contact your A/GA Desk Officer.
- (39) Check in all solicitations and contracts
- (40) Check if some of the work will be performed inside the U.S., and the period of performance exceeds 120 days.
- (41) Not applicable to commercially off the shelf items. In solicitations and contracts exceeding \$150,000 that are for, or specify the use of, EPA-designated items containing recovered materials.
- (42-43) Not applicable overseas
- (44-45) Not applicable overseas
- (46) Check unless an exception or exemption applies
https://www.acquisition.gov/far/23.109#FAR_23_109

- (47) Only check when contractor employees will have system record access; create, collect, use, process, store, maintain, disseminate, disclose, dispose or otherwise, handle PII; or design, develop, maintain or operate a system of records.
- (48- 49) Not applicable
- (50) Check if the requirement exceeds \$174,000 and if the acquisition is covered by the WTO GPA (see FAR Subpart 25.4 for country specifics)
- (51) Check this clause
- (52) Not applicable
- (53-54) only applicable if the contracting officer set aside solicitations to allow only local firms (in a disaster zone) within a specific geographic area to compete. Check if applicable.
- (55) Check this clause
- (56) Check if over \$250,000
- (57) Check this clause
- (58) Check this clause if the offeror has requested installation/progress payments and only after obtaining guidance from your A/GA Desk Officer.
- (59) Check if payment will be made by EFT and the Contractor has registered in the SAM.
- (60) Check if payment will be made by EFT or other means, e.g. check, and the Contractor has not registered in the SAM.
- (61) Check if payment will be made by the Government wide commercial purchase card.
- (62) Check in solicitations and contracts for information technology which require security of information technology, and/or are for the design, development, or operation of a system of records using commercial information technology services or support services.
- (63) Check this clause
- (64) not applicable
- (65) Check if the order is for supplies that may involve ocean transportation: at least 50% of the gross tonnage must be transported on privately owned U.S-flag commercial vessels to the extent that such vessels are available at rates that are fair and reasonable for U.S-flag commercial vessels. Check Alternate I if 100% of the supplies will be transported on privately owned U.S-flag commercial vessels.

Paragraph (c) is not applicable.

Paragraph (e) applies only if award is made to a U.S. firm: (xix) Alternate I check if local law identifies “off-limits establishments”

FAR 52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).

- (6) [52.233-3](#), Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) [52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- ___ (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and [10 U.S.C. 4655](#)).
- ___ (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).
- ___ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ___ (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).
- ___ (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).
- ___ (6) [Reserved].
- ___ (7) [52.204-14](#), Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ___ (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ___ (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- ___ (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II).
- ___ (11)
 - (i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).
 - ___ (ii) Alternate I (Dec 2023) of [52.204-30](#).
- ___ (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) ([31 U.S.C. 6101 note](#)).
- ___ (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)).
- ___ (14) [Reserved].
- ___ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) ([15 U.S.C. 657a](#)).
- ___ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ___ (17) [Reserved]
- ___ (18)
 - (i) [52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
 - ___ (ii) Alternate I (Mar 2020) of [52.219-6](#).

- (19)
- (i) [52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- (ii) Alternate I (Mar 2020) of [52.219-7](#).
- (20) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025)([15 U.S.C. 637](#)(d)(2) and (3)).
- (21)
- (i) [52.219-9](#), Small Business Subcontracting Plan (Jan 2025) ([15 U.S.C. 637](#)(d)(4)).
- (ii) Alternate I (Nov 2016) of [52.219-9](#).
- (iii) Alternate II (Nov 2016) of [52.219-9](#).
- (iv) Alternate III (Jun 2020) of [52.219-9](#).
- (v) Alternate IV (Jan 2025) of [52.219-9](#).
- (22)
- (i) [52.219-13](#), Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- (ii) Alternate I (Mar 2020) of [52.219-13](#).
- (23) [52.219-14](#), Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- (26)
- (i) [52.219-28](#), Postaward Small Business Program Representation (Jan 2025) (15 U.S.C. 632(a)(2)).
- (ii) Alternate I (Mar 2020) of [52.219-28](#).
- (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (Mar 2020) ([15 U.S.C. 644](#)(r)).
- (30) [52.219-33](#), Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637](#)(a)(17)).
- (31) [52.222-3](#), Convict Labor (Jun 2003) (E.O.11755).
- (32) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (Jan 2025)([E.O. 13126](#)).
- (33) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).
- (34)
- (i) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O.11246).
- (ii) Alternate I (Feb 1999) of [52.222-26](#).
- (35)
- (i) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
- (ii) Alternate I (Jul 2014) of [52.222-35](#).
- (36)
- (i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) ([29 U.S.C. 793](#)).
- (ii) Alternate I (Jul 2014) of [52.222-36](#).
- (37) [52.222-37](#), Employment Reports on Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
- (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- (39)
- (i) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

- ___ (ii) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).
- ___ (40) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)
- ___ (41)
- ___ (i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (ii) Alternate I (May 2008) of [52.223-9](#) (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (44) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (45) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (46) [52.223-23](#), Sustainable Products and Services (May 2024) ([E.O. 14057](#), [7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671i](#)).
- ___ (47)
- ___ (i) [52.224-3](#) Privacy Training (Jan 2017) ([5 U.S.C. 552](#) a).
- ___ (ii) Alternate I (Jan 2017) of [52.224-3](#).
- ___ (48)
- ___ (i) [52.225-1](#), Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).
- ___ (ii) Alternate I (Oct 2022) of [52.225-1](#).
- ___ (49)
- ___ (i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301 note](#), [19 U.S.C. 2112 note](#), [19 U.S.C. 3805 note](#), [19 U.S.C. 4001 note](#), [19 U.S.C. chapter 29](#) (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ___ (ii) Alternate I [Reserved].
- ___ (iii) Alternate II (Jan 2025) of [52.225-3](#).
- ___ (iv) Alternate III (Feb 2024) of [52.225-3](#).
- ___ (v) Alternate IV (Oct 2022) of [52.225-3](#).
- ___ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).
- ___ (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.’s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ___ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ___ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ___ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- ___ (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ([E.O. 13513](#)).
- ___ (56) [52.229-12](#), Tax on Certain Foreign Procurements (Feb 2021).
- ___ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).
- ___ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).

- ___ (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct2018) ([31 U.S.C. 3332](#)).
- ___ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ___ (61) [52.232-36](#), Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ___ (62) [52.239-1](#), Privacy or Security Safeguards (Aug 1996) ([5 U.S.C. 552a](#)).
- ___ (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).
- ___ (64) [52.242-5](#), Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- ___ (65)
- (i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631).
- ___ (ii) Alternate I (Apr 2003) of [52.247-64](#).
- ___ (iii) Alternate II (Nov 2021) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ___ (1) [52.222-41](#), Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- ___ (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ___ (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ___ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29U.S.C.206](#) and 41 U.S.C. chapter 67).
- ___ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- ___ (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- ___ (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- ___ (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- ___ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- ___ (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ([49 U.S.C. 40118\(g\)](#)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor

Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

(B) Alternate I (Dec 2023) of [52.204-30](#).

(viii) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(ix) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

(x) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O.11246).

(xi) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(xv) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).

(xvi)

(A) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([E.O. 12989](#)).

(xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (Jan 2017) of [52.224-3](#).

(xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).

(xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).

(xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

COMMERCIAL ITEMS

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This purchase order or BPA incorporates the following clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: [Acquisition.gov](#) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](#) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (48 CFR CHAPTER1) CLAUSES ARE INCORPORATED BY REFERENCE:

<u>CLAUSE</u>	<u>TITLE AND DATE</u>
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)

- 52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR
PERSONNEL (JAN 2011)
- 52.204-12 UNIQUE ENTITY IDENTIFIER MAINTENANCE (OCT 2016)
- 52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE
(OCT 2018)
- 52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)
- 52.222-19 CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES
(JAN 2025)
- 52.222-50 COMBATING TRAFFICKING IN PERSONS (NOV 2021)
- 52.225-5 TRADE AGREEMENTS (NOV 2023)
- 52.225-14 INCONSISTENCY BETWEEN ENGLISH VERSION AND
TRANSLATION OF CONTRACT (FEB 2000)
- 52.225-19 CONTRACTOR PERSONNEL IN A DESIGNATED AREA OR SUPPORTING
A DIPLOMATIC OR CONSULAR MISSION OUTSIDE THE UNITED
STATES (MAY 2020)
- 52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING
WHILE DRIVING (MAY 2024)
- 52.228-3 WORKERS' COMPENSATION INSURANCE (DEFENSE BASE ACT)
(JUL 2014) (SERVICES ONLY)

The Offeror shall include Defense Base Act (DBA) insurance premium costs covering employees. The offeror may obtain DBA insurance directly from any Department of Labor approved providers at the DOL website at <http://www.dol.gov/owcp/dlhwc/lscarrier.htm>

- 52.229-6 FOREIGN FIXED PRICE CONTRACTS (FEB 2013)
- 52.232-24 PROHIBITION OF ASSIGNMENT OF CLAIMS (MAY 2014)
- 52.232-36 PAYMENT BY THIRD PARTY (MAY 2014)
- 52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS
(JUNE 2013)
- 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS
SUBCONTRACTORS (MAR 2023)
- 52.233-1 DISPUTES ALTERNATE I (MAY 2014)
- 52.237-2 PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT AND
VEGETATION (APR 1984)

DEPARTMENT OF STATE ACQUISITION REGULATION (DOSAR) CLAUSES
(48 CFR CHAPTER 6):

<u>DOSAR</u>	<u>TITLE AND DATE</u>
652.225-71	SECTION 8(A) OF THE EXPORT ADMINISTRATION ACT OF 1979 AS AMENDED, (AUG 1999)
652.229-70	EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS WITHIN THE UNITED STATES (JUL 1988)
652.229-71	PERSONAL PROPERTY DISPOSITION AT POSTS ABROAD (AUG 1999)
652.237-72	OBSERVANCE OF LEGAL HOLIDAYS AND ADMINISTRATIVE LEAVE (FEB 2015)
652.239-71	SECURITY REQUIREMENTS FOR UNCLASSIFIED INFORMATION TECHNOLOGY RESOURCES (SEP 2007)
652.242-70	CONTRACTING OFFICER’S REPRESENTATIVE (AUG 1999)
652.247-70	NOTICE OF SHIPMENTS (FEB 2015)
652-242-73	AUTHORIZATION AND PERFORMANCE (AUG 1999)
652.243-70	NOTICES (AUG 1999)

THE FOLLOWING CLAUSES ARE PROVIDED IN FULL TEXT, AND ARE APPLICABLE
FOR ORDERS FOR SERVICES:

CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government e-mail.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

- 1) Use an e-mail signature block that shows name, the office being supported and company affiliation (e.g. “John Smith, Office of Human Resources, ACME Corporation Support Contractor”);
- 2) Clearly identify themselves and their contractor affiliation in meetings;

- 3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever Contractor personnel are included in those listings; and
- 4) Contractor personnel may not utilize Department of State logos or indicia on business cards.

(End of clause)

652.228-71 WORKER'S COMPENSATION INSURANCE (DEFENSE BASE ACT) –
SERVICES (FEB 2015)

(a) This clause supplements FAR 52.228-3. For the purposes of this clause, "covered contractor employees" includes the following individuals:

- (1) United States citizens or residents;
- (2) Individuals hired in the United States or its possessions, regardless of citizenship; and
- (3) Local nationals and third country nationals where contract performance takes place in a country where there are no local workers' compensation laws.

(b) The Contractor shall procure Defense Base Act (DBA) insurance directly from a Department of Labor (DOL) approved insurance provider. Approved providers can be found at the DOL Web site at <http://www.dol.gov/owcp/dlhwc/lscarrier.htm>."

(c)

(1) Section 16 of the State Department Basic Authorities Act (22 U.S.C. 2680a), as amended, provides that the Defense Base Act shall not apply with respect to such contracts as the Secretary of State determines are contracts with persons employed to perform work for the Department of State on an intermittent basis for not more than 90 days in a calendar year. "Persons" includes individuals hired by companies under contract with the Department. The Procurement Executive has the authority to issue the waivers for Contractor employees who work on an intermittent or short-term basis.

(2) The Contractor shall submit waiver requests to the contracting officer. The request shall contain the following information:

- (i) Contract number;
- (ii) Name of Contractor;
- (iii) Brief description of the services to be provided under the contract and country of performance;
- (iv) Name and position title of individual(s);
- (v) Nationality of individual(s) (must be U.S. citizen or U.S. resident);
- (vi) Dates (or timeframe) of performance at the overseas location; and,

(vii) Evidence of alternative workers' compensation coverage for these employees (e.g., evidence that the State workers' compensation program covers workers on short-term foreign assignments).

(3) The contracting officer shall provide to the Contractor the original of the approved or disapproved document and maintain a copy in the contract file.

(End of clause)

SECTION 3 – SOLICITATION PROVISIONS

52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023) IS INCORPORATED BY REFERENCE (SEE SF-1449, BLOCK 27A).

ADDENDUM TO 52.212-1

A. Summary of instructions. Each quotation must consist of the following:

A.1. A completed solicitation, in which the SF-1449 cover page (blocks 12, 17, 19-24, and 30 as appropriate).

A.2. Information demonstrating the quoter's ability to perform, including:

- (1) Name of a Project Manager (or other liaison to the Embassy/Consulate) who understands written and spoken English;
- (2) Evidence that the quoter operates an established business with a permanent address and telephone listing in Ecuador.
- (3) The offeror shall start SAM registration process to include the SAM UEI number.
- (4) List of clients, demonstrating prior experience with relevant past performance information and references;
- (5) Evidence that the quoter can provide the necessary personnel, equipment, and financial resources needed to perform the work;
- (6) Evidence that the quoter has all licenses and permits required by local law (see DOSAR 652.242-73 in Section 2).
- (7) Description of garage including safety features where vehicles will be services.
- (8) Provide a written quality assurance plan describing steps the company will take to ensure the quality of service required by the contract is provided.

A.3. If required by the solicitation, provide either:

- a copy of the Certificate of Insurance, or
- a statement that the Contractor will get the required insurance, and the name of the insurance provider to be used.

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at Acquisition.gov this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION
PROVISION(S) IS/ARE INCORPORATED BY REFERENCE:

<u>PROVISION</u>	<u>TITLE AND DATE</u>
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.204-7	SYSTEM FOR AWARD MANAGEMENT (NOV 2024)
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020)
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)
52.211-1	AVAILABILITY OF SPECIFICATIONS LISTED IN THE GSA INDEX OF FEDERAL SPECIFICATIONS, STANDARDS AND COMMERCIAL ITEM DESCRIPTIONS, FPMR PART 101-29 (SEP 2023)
52.212-1	INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)
52.214-34	SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)

THE FOLLOWING DOSAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN.

(a) The Department of State’s Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial

practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

(1) For solicitations issued by the Office of Acquisition Management (A/GA/AMD) or a Regional Procurement Support Office, the A/GA/AMD Advocate for Competition, at AQMCompetitionAdvocate@state.gov.

(2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman, [insert name], at [insert telephone and fax numbers]. For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of Global Acquisitions (A/GA), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

SECTION 4 - EVALUATION FACTORS

The Government intends to award Blanket Purchase Agreement(s) (BPA) resulting from this solicitation.

Specifically, the following will be reviewed:

Technical Acceptability

Technical acceptability will include a review of past performance and experience as defined in Section 3, along with any technical information provided by the quoter with its quotation.

Responsibility Determination

Responsibility will be determined by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:

- * adequate financial resources or the ability to obtain them;
 - * ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
 - * satisfactory record of integrity and business ethics;
 - * necessary organization, experience, and skills or the ability to obtain them;
 - * necessary equipment and facilities or the ability to obtain them; and
 - * be otherwise qualified and eligible to receive an award under applicable laws and regulations.

SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021).

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or

services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-
REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, “covered telecommunications equipment or services” and “reasonable inquiry” have the meaning provided in the clause 52.204-25,

Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) *Representations.* (1) The Offeror represents that it [] does, [] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the Offeror represents that it [] does, [] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.225-4 BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT
CERTIFICATE (NOV 2023)

(a) (1) The Offeror certifies that each end product, except those listed in paragraph (b) or (c)(1) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(2) of this provision contains a critical component.

(2) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(b) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.

[List as necessary]

(c)

(1) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (b) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(2) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR [25.105](#)).

Line Item No. ____

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of [part 25](#) of the Federal Acquisition Regulation.

(End of provision)

Alternate I [Reserved]

Alternate II (DEC 2022). As prescribed in [25.1101](#) (b)(2)(ii), substitute the following paragraph (b) for paragraph (b) of the basic provision:

(b) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act—Balance of Payments Program”:

ISRAELI END PRODUCTS:

Line Item No.

[List as necessary]

Alternate III(NOV 2023) . As prescribed in [25.1101](#) (b)(2)(iii), substitute the following paragraph (b) for paragraph (b) of the basic provision:

(b) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Korean, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

FREE TRADE AGREEMENT COUNTRY END PRODUCTS (OTHER THAN BAHRAINI,
KOREAN, MOROCCAN, OMANI, PANAMANIAN, OR PERUVIAN END PRODUCTS) OR
ISRAELI END PRODUCTS:

Line Item No.

[List as necessary]

THE FOLLOWING DOSAR PROVISION IS PROVIDED IN FULL TEXT:

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

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THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION
PROVISIONS ARE INCORPORATED BY REFERENCE:

52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN
CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO
IRAN—REPRESENTATION AND CERTIFICATIONS (JUN 2020)